

given to trustees upon trust to apply the whole or *such part* of the interest as they should think fit during the life of A., for his *support and maintenance*, and for no other purpose, it was held that nothing passed to the assignees (c). So where freehold and leasehold property was vested in trustees upon trust for A. B. for life; but if he became bankrupt or insolvent the trustees were, during his life, to apply the annual produce "in and towards the *maintenance, clothing, lodging, and support* of A. B. and his then present or any future *wife and his children*, or *any of them* as the trustees should at their distinction think proper," and A. B. became insolvent, having a wife and children, it was argued that the power in the trustees was destroyed by the insolvency, and that the life estate vested in the assignee; but Vice-Chancellor Knight Bruce held that the trustees had a right under the power to appoint in favour of the insolvent, his wife and children, or any of them in exclusion of any other of them, but that any benefit which the insolvent might take would belong to the assignee (d). And even if the trust be for the maintenance of the bankrupt *and* his wife *and* his children in such manner as the trustees may think fit, it seems that the trustees may so exercise the power that there shall be nothing tangible for the creditors to lay hold of. Thus where a residuary personal estate was given to the testator's son for life, but if he did any act whereby the interest vested in him would become forfeited to others, the trustees were to apply the annual produce "for the *maintenance and support* of the son, and *any wife and child or children* he might have, as the trustees should in their discretion think fit," and the son became bankrupt, having a wife and children, the Vice-Chancellor of England said "That nothing was of necessity to be *paid*, but the property was to be *applied*; and there might be a maintenance of the son, and of the wife and * children, without their receiving any money [*101] at all: that the trustees might take a house for their

or deny the effect of that exercise of the discretion which would have bound the debtor."]

(c) *Twopeny v. Peyton*, 10 Sim.

487; and see *Re Sanderson's Trust*, 3 K. & J. 497.

(d) *Lord v. Bunn*, 2 Y. & C. Ch. Ca. 98; *Holmes v. Penney*, 3 K. & J. 90.